

Gopal Krishna Chaturvedi v. State of U.P.

Allahabad High Court · Division Bench · 1 November 2018 · Writ - C No. 36539 of 2018 · **Writ disposed of; petitioner relegated to paragraph 6.5 objection; coercive recovery stayed pending decision.**

HEADNOTE

A consumer disputing an electricity bill recovered as arrears was relegated to objection before the Executive Engineer under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The writ court did not quash the Tehsildar recovery citation on merits, directed a time-bound decision in accordance with law, and stayed coercive action until that objection was decided.

FACTUAL SUMMARY

Gopal Krishna Chaturvedi challenged a Tehsildar recovery citation dated 16 July 2018 for Rs. 3,03,881 as electricity-bill arrears in Kannauj. He said he had applied to the electricity department for disconnection, yet bills continued, so the recovery was bad. Dakshinanchal Vidyut Vitran Nigam submitted that a billing dispute had to be raised by objection before the Executive Engineer, Kannauj, under paragraph 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A consumer who disputes an electricity bill sought to be recovered as arrears has a remedy by filing objection before the Executive Engineer under paragraph 6.5 of the U.P. Electricity Supply Code, 2005; the writ court will not quash the recovery citation on merits and will dispose of the petition leaving that forum open, with a time-bound decision in accordance with law and a stay of coercive action until the objection is decided. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S DISCONNECTION REQUEST MADE SUBSEQUENT BILLS AND THE RECOVERY CITATION OF RS. 3,03,881 UNSUSTAINABLE ON MERITS

¶ 5-6